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BENJAMIN BANKS,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. CHRISTIAN SANCHEZ, Shield No. 25663, Individually and in his Official Capacity, P.O. VLADIMIR TEJARA, Shield No. 26231, Individually and in his Official Capacity, P.O. VINCENT TROZZI, Shield No. 19000, Individually and in his Official Capacity, P.O. EVIGALDY RODRIGUEZ, Shield No. 17200, Individually and in his Official Capacity, and P.O. ñJOHN DOEò #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Defendants.

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Plaintiff BENJAMIN BANKS, by his attorneys, COHEN & FITCH LLP, complaining of the defendants, respectfully alleges as follows:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. §1983 and 42 U.S.C. §1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §1983 and 42 U.S.C. §1988, and the Fourth and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is founded upon 28 U.S.C. §§ 1331, 1343 and 1367.



VENUE

4. venue is properly laid in the Southern District of New York under U.S.C. §1391(b), in that this is the District in which the claim arose.

JURY DEMAND

5. Plaintiff respectfully demands a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38(b).

PARTIES

6. Plaintiff BENJAMIN BANKS is an African-American male and has been at all relevant times a resident of the City and State of New York.

7. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

8. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

9. At all times hereinafter mentioned, the individually named defendants P.O. CHRISTIAN SANCHEZ, P.O. VLADIMIR TEJERA, P.O. VINCENT TROZZI, P.O. EVIGALDY RODRIGUEZ and P.O.s ñJOHN DOEò #1-#10 were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.



mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

11. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

12. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

FACTS

THE OCTOBER 12, 2009, INCIDENT

13. On or about October 12, 2009, at approximately 12:30 a.m., plaintiff BENJAMIN BANKS was lawfully present at an apartment located at 1302 College Avenue, Apartment 1A, in Bronx County in the City and State of New York.

14. At the aforesaid time and place, defendant police officers stormed into the apartment with their guns drawn.

15. Despite the fact that there was no evidence of criminal activity, defendants immediately placed plaintiff under arrest, handcuffing his hands behind his back, and charged him with criminal trespass.

16. At no time on October 12, 2009, was plaintiff BENJAMIN BANKS trespassing or engaged in unlawful activity whatsoever.

17. At no time on or about October 12, 2009, did defendants possess probable cause to arrest plaintiff.



12, 2009, did defendant officers possess information that would lead a reasonable officer to believe plaintiff BENJAMIN BANKS had engaged in any criminal or unlawful activity whatsoever.

19. As a result of his unlawful arrest, plaintiff BENJAMIN BANKS spent approximately thirty-six (36) hours in police custody before he was released when the Bronx County District Attorney's office declined to prosecute charges against him.

20. As a result of the foregoing, plaintiff BENJAMIN BANKS sustained, *inter alia*, loss of liberty, emotional distress, mental anguish, shock, fright, apprehension, embarrassment and humiliation, and deprivation of his constitutional rights.

THE SEPTEMBER 10, 2011, INCIDENT

21. On or about September 10, 2011, at approximately 9:00 p.m., plaintiff BENJAMIN BANKS was lawfully present in the vicinity of Grand Concourse and East 179th Street in Bronx County in the City and State of New York.

22. At the aforesaid time and place, plaintiff and a few of his friends were walking to the taxicab they hired when defendant officers suddenly accosted them with their guns drawn.

23. The officers immediately placed plaintiff under arrest, handcuffing his arms tightly behind his back, and charged him with Criminal Possession of a Controlled Substance in the Seventh Degree, Criminal Possession of Marijuana in the Fifth Degree, and Unlawful Possession of Marijuana.

24. At no time on September 10, 2011, did plaintiff possess or control any controlled substance, violate any law, or act unlawfully in any way.

25. At no time on September 10, 2011, did defendants possess probable cause to arrest plaintiff.



On or about October 10, 2011, did defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

27. As a result of his unlawful arrest, plaintiff BENJAMIN BANKS spent approximately sixty (60) hours in police custody.

28. In connection with plaintiff's arrest, defendants filled out false and/or misleading police reports and forwarded them to prosecutors at the Bronx County District Attorney's Office.

29. Thereafter, defendants repeatedly gave false and misleading testimony regarding the facts and circumstances of plaintiff's arrest.

30. Specifically, defendants falsely alleged that they found a bag containing crack cocaine and a bag containing marijuana inside the taxicab.

31. Despite defendants' actions and after numerous court dates, all charges against plaintiff BENJAMIN BANKS were dismissed on or about November 28, 2011.

32. As a result of the foregoing, plaintiff BENJAMIN BANKS sustained, *inter alia*, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

THE JANUARY 6, 2012, INCIDENT

33. On or about January 6, 2012, at approximately 8:30 p.m., plaintiff BENJAMIN BANKS was lawfully present in the vicinity of East 170th Street and College Avenue, in the County of the Bronx, State of New York, when defendant police officers suddenly accosted him.

34. Immediately thereafter, defendants placed plaintiff under arrested, handcuffing his arms tightly behind his back, and charged him with Disorderly Conduct.

35. At no time on January 6, 2012, did plaintiff behave disorderly or act unlawfully in any way.



6, 2012, did defendants possess probable cause to arrest plaintiff.

37. At no time on January 6, 2012, did defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

38. As a result of his unlawful arrest, plaintiff BENJAMIN BANKS spent approximately thirty-six (36) hours in police custody before his case was ultimately dismissed on January 8, 2012.

39. As a result of the foregoing, plaintiff BENJAMIN BANKS sustained, *inter alia*, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

**FIRST CLAIM FOR RELIEF ARISING FROM THE OCTOBER 12, 2009, ARREST
FOR DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983**

40. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered ñ1ò through ñ39ò with the same force and effect as if fully set forth herein.

41. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

42. All of the aforementioned acts deprived plaintiff BENJAMIN BANKS of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

43. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.



of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

45. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF ARISING FROM THE OCTOBER 12, 2009, ARREST FOR FALSE ARREST UNDER 42 U.S.C. § 1983

46. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered ñ1ò through ñ45ò with the same force and effect as if fully set forth herein.

47. As a result of the aforesaid conduct by defendants, plaintiff was subjected to illegal, improper and false arrest by the defendants, taken into custody, and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

48. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

THIRD CLAIM FOR RELIEF ARISING FROM THE OCTOBER 12, 2009, ARREST FOR MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

49. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered ñ1ò through ñ48ò with the same force and effect as if fully set forth herein.

50. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.



customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to the following unconstitutional practices:

- a) arresting individuals despite the absence of evidence of criminal or unlawful activity;
- b) arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and
- c) arresting innocent persons in order to inflate officers' arrest statistics.

52. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of plaintiff.

53. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

54. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

55. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully arrested and detained.

56. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiff's constitutional rights.

57. The acts complained of deprived plaintiff of his rights:

- a) Not to be deprived of liberty without due process of law;
- b) To be free from seizure and arrest not based upon probable cause;



inlawful search;

d) Not to have summary punishment imposed upon him; and

e) To receive equal protection under the law.

**FOURTH CLAIM FOR RELIEF ARISING FROM THE SEPTEMBER 10, 2011,
ARREST FOR DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983**

58. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered ñ1ò through ñ57ò with the same force and effect as if fully set forth herein.

59. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

60. All of the aforementioned acts deprived plaintiff BENJAMIN BANKS of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

61. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

62. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

63. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.



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**SING FROM THE SEPTEMBER 10, 2011, ARREST
RREST UNDER 42 U.S.C. § 1983**

64. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered ñ1ò through ñ63ò with the same force and effect as if fully set forth herein.

65. As a result of the aforesaid conduct by defendants, plaintiff was subjected to illegal, improper and false arrest by the defendants, taken into custody, and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

66. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

**SIXTH CLAIM FOR RELIEF ARISING FROM THE SEPTEMBER 10, 2011,
ARREST FOR MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

67. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered ñ1ò through ñ66ò with the same force and effect as if fully set forth herein.

68. Defendants misrepresented and falsified evidence before the Bronx County District Attorney.

69. Defendants did not make a complete and full statement of facts to the District Attorney.

70. Defendants withheld exculpatory evidence from the District Attorney.

71. Defendants were directly and actively involved in the initiation of criminal proceedings against plaintiff BENJAMIN BANKS.

72. Defendants lacked probable cause to initiate criminal proceedings against plaintiff BENJAMIN BANKS.

73. Defendants acted with malice in initiating criminal proceedings against plaintiff BENJAMIN BANKS.



and actively involved in the continuation of criminal proceedings against plaintiff BENJAMIN BANKS.

75. Defendants lacked probable cause to continue criminal proceedings against plaintiff BENJAMIN BANKS.

76. Defendants acted with malice in continuing criminal proceedings against plaintiff BENJAMIN BANKS.

77. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.

78. Specifically, defendants falsely and knowingly alleged that they found a bag containing crack cocaine and a bag containing marijuana inside the taxicab.

79. Notwithstanding the perjurious and fraudulent conduct of defendants, the criminal proceedings were terminated in plaintiff BENJAMIN BANKS's favor on or about November 28, 2011 when the charges against him were dismissed.

80. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

**SEVENTH CLAIM FOR RELIEF ARISING FROM THE SEPTEMBER 10, 2011,
ARREST FOR DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL
UNDER 42 U.S.C. § 1983**

81. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 80 as if the same were more fully set forth at length herein.

82. Defendants created false evidence against plaintiff BENJAMIN BANKS.

83. Specifically, defendants falsely and knowingly alleged that they found a bag containing crack cocaine and a bag containing marijuana inside the taxicab.



...false evidence and false information to prosecutors in the
Bronx County District Attorney's Office.

85. Defendants misled the prosecutors by creating false evidence against plaintiff BENJAMIN BANKS and thereafter providing false testimony throughout the criminal proceedings.

86. In creating false evidence against plaintiff BENJAMIN BANKS, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants violated plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

87. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

**EIGHTH CLAIM FOR RELIEF ARISING FROM THE SEPTEMBER 10, 2011,
ARREST FOR MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983**

88. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 87 with the same force and effect as if fully set forth herein.

89. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

90. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and
- ii. arresting innocent persons notwithstanding the existence of credible



exonerates the accused of any criminal wrongdoing.

91. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of plaintiff.

92. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

93. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

94. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiff's constitutional rights.

95. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of plaintiff BENJAMIN BANKS's constitutional rights.

96. The acts complained of deprived plaintiff of his rights:

- a) Not to be deprived of liberty without due process of law;
- b) To be free from seizure and arrest not based upon probable cause;
- c) Not to have summary punishment imposed upon him; and
- d) To receive equal protection under the law.

NINTH CLAIM FOR RELIEF ARISING FROM THE JANUARY 6, 2012, ARREST FOR DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

97. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "96" with the same force and effect as if fully set forth herein.



onned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

99. All of the aforementioned acts deprived plaintiff BENJAMIN BANKS of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

100. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

101. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

102. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**TENTH CLAIM FOR RELIEF ARISING FROM THE JANUARY 6, 2012, ARREST
FOR FALSE ARREST UNDER 42 U.S.C. § 1983**

103. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered ñ10 through ñ102 with the same force and effect as if fully set forth herein.

104. As a result of the aforesaid conduct by defendants, plaintiff was subjected to illegal, improper and false arrest by the defendants, taken into custody, and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.



going, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

ELEVENTH CLAIM FOR RELIEF ARISING FROM THE JANUARY 6, 2012, ARREST FOR MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

106. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered ¶1 through ¶105 with the same force and effect as if fully set forth herein.

107. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

108. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to the following unconstitutional practices:

- a) arresting individuals despite the absence of evidence of criminal or unlawful activity;
- b) arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and
- c) arresting innocent persons in order to inflate officers' arrest statistics.

109. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of plaintiff.

110. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.



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policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

112. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully arrested and detained.

113. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiff's constitutional rights.

114. The acts complained of deprived plaintiff of his rights:

- a) Not to be deprived of liberty without due process of law;
- b) To be free from seizure and arrest not based upon probable cause;
- c) To be free from unlawful search;
- d) Not to have summary punishment imposed upon him; and
- e) To receive equal protection under the law.

PENDANT STATE CLAIMS ARISING FROM THE JANUARY 6, 2012, ARREST

115. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered ¶10 through ¶114 with the same force and effect as if fully set forth herein.

116. On or about January 30, 2012, and within ninety (90) days after the claim herein accrued, the plaintiff duly served upon, presented to and filed with defendant THE CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law § 50 (e).



THE CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

118. Defendant THE CITY OF NEW YORK demanded a hearing pursuant to General Municipal Law § 50-h and the hearing has not yet occurred.

119. This action was commenced within one (1) year and ninety (90) days after the cause of action herein accrued.

120. Plaintiff has complied with all conditions precedent to maintaining the instant action.

121. This action falls within one or more of the exceptions as outlined in C.P.L.R. § 1602.

FIRST CLAIM FOR RELIEF UNDER N.Y. STATE LAW
ASSAULT

122. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered ¶1 through ¶121 with the same force and effect as if fully set forth herein.

123. Defendants' aforementioned actions placed plaintiff in apprehension of imminent harmful and offensive bodily contact.

124. As a result of defendants' conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.



R RELIEF UNDER N.Y. STATE LAW BATTERY

125. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered ñ10 through ñ1240 with the same force and effect as if fully set forth herein.

126. Defendant police officers touched plaintiff BENJAMIN BANKS in a harmful and offensive manner.

127. Defendant police officers did so without privilege or consent from plaintiff.

128. As a result of defendants' conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

THIRD CLAIM FOR RELIEF UNDER N.Y. STATE LAW FALSE ARREST

129. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered ñ10 through ñ1280 with the same force and effect as if fully set forth herein.

130. Defendant police officers arrested plaintiff BENJAMIN BANKS in the absence of probable cause and without a warrant.

131. As a result of the aforesaid conduct by defendants, plaintiff BENJAMIN BANKS was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings. The aforesaid actions by the defendants constituted a deprivation of plaintiff's rights.



R RELIEF UNDER N.Y. STATE LAW
SE IMPRISONMENT

132. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered ñ10 through ñ1310 with the same force and effect as if fully set forth herein.

133. As a result of the foregoing, plaintiff BENJAMIN BANKS was falsely imprisoned, his liberty was restricted for an extended period of time, was put in fear for his safety, was humiliated and subjected to handcuffing, and other physical restraints.

134. Plaintiff was conscious of said confinement and did not consent to same.

135. The confinement of plaintiff was without probable cause and was not otherwise privileged.

136. As a result of the aforementioned conduct, plaintiff has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

FIFTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

137. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered ñ10 through ñ1360 with the same force and effect as if fully set forth herein.

138. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

139. The aforementioned conduct was committed by defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

140. The aforementioned conduct was committed by defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.



conduct was intentional and done for the sole purpose of causing severe emotional distress to plaintiff.

142. As a result of the aforementioned conduct, plaintiff suffered severe emotional distress, mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

**SIXTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION**

143. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered ¶1 through ¶142 with the same force and effect as if fully set forth herein.

144. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned and supervised all members of its Police Department, including the defendants individually named above.

145. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendants individually named above.

146. Due to the negligence of the defendants as set forth above, plaintiff suffered mental injury, pain and trauma, together with embarrassment, humiliation shock, fright, and loss of freedom.

147. As a result of the foregoing, plaintiff is entitled to compensatory damages and is further entitled to punitive damages against the individual defendants.

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined



- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
March 28, 2012

BY: _____/S
GERALD COHEN
JOSHUA FITCH
COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10279
(212) 374-9115
gcohen@cohenfitch.com
jfitch@cohenfitch.com